

Court No. - 21

Case :- WRIT - C No. - 10638 of 2023

Petitioner :- Vikas Asthana

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ram Pravesh Yadav, Shashank Kumar

Counsel for Respondent :- CSC, Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Umesh Chandra Sharma, J.

The petitioner has challenged the provisional assessment bill dated 23.2.2023 and the consequent proceeding for recovery of the amount allegedly due against him in a case of theft of electricity.

Learned counsel for the petitioner vehemently submitted that the objection filed by the petitioner has not been considered in accordance with law, nor the impugned order records relevant findings as contemplated under law.

We have gone through the order dated 23.2.2023 and we find that the same is vague and confusing and does not record proper findings, nor deal with the objections filed by the petitioner.

Sri Udit Chandra, learned counsel for the respondent Electricity Department, prays for liberty to the respondents to pass a fresh order.

Accordingly, the impugned order dated 23.2.2023 is hereby quashed, with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

The petition stands disposed of accordingly.

(Umesh Chandra Sharma, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.3.2023

Jaideep/-